

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508295	LITTLE VS ROCKET CLOSE, LLC	PLAINTIFF'S MOTION FOR PREFERENTIAL TRIAL SETTING

Tentative Ruling:

No opposition filed.

The court in its discretion finds that preference would be in the interests of justice and a sufficient showing has been made by Plaintiff.

Motion for Preferential Trial Setting pursuant to CCP 36(e) is GRANTED.

Trial call on 11.06.26. Parties directed to read and review Riverside Local Rule 3401 and the PS1 Rules governing Trial & Law and Motion posted on the Court's website incorporated by reference into this order. Failure to comply with these rules may result in monetary, issue, or other sanctions against counsel and parties jointly and severally.

Any jury deposit or fee waiver shall be submitted by end of business 7.21.26. Failure to do so will result in waiver of right to a jury trial.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2508295	LITTLE VS ROCKET CLOSE, LLC	DEFENDANTS' MOTION FOR PROTECTIVE ORDER

Tentative Ruling: CCP § 2030.030(a) provides that, unless otherwise authorized, a party may propound a maximum of 35 SROGs. Similarly, CCP § 2033.030(a) establishes a presumptive limit of 35 RFAs. A party may exceed those limits by serving a declaration under CCP §§ 2030.050 and 2033.050. Section 2030.050 requires the declaration to state "each factor described in Section 2030.040 that is relied on, as well as the reasons why any factor relied on is applicable to the lawsuit." (CCP § 2030.050.) Similarly, section 2033.050 requires the declaration to state "the reasons why the complexity or the quantity of issues in the lawsuit warrants this number of requests for admission." (CCP § 2033.050.)

The factors set forth in section 2030.040(a) include: (1) "[t]he complexity or the quantity of the existing and potential issues in the particular case"; (2) "[t]he financial burden on a party entailed in conducting the discovery by oral deposition"; and (3) "[t]he expedience of using this method of discovery to provide to the responding party the opportunity to conduct an inquiry, investigation, or search of files or records to supply the information sought." (CCP § 2030.040(a)(1)–(3).) The same factors apply to RFAs under section 2033.040(a). (CCP § 2033.040(a) ["any party . . . may request a greater number of [RFAs] . . . if the greater number is warranted by the complexity or the quantity of the existing and potential issues in the particular case"].)

Once the responding party moves for protective order challenging the number as unwarranted, the propounding party bears the burden of justifying the number of SROGs and RFAs. (CCP §§ 2030.040(b); 2033.040(b).) The court may make any order justice requires to protect any party from unwarranted annoyance, embarrassment, or

oppression, or undue burden and expense. (CCP §§ 2030.090(b); 2033.080(b).) Such an order is appropriate where, contrary to representations made in a declaration submitted under sections 2030.050 or 2033.050, the number of SROGs or RFAs is unwarranted. (CCP §§ 2030.090(b)(2); 2033.080(b)(2).)

Defendants move to challenge the number of Plaintiff's SROGs and RFAs as unwarranted. Defendants' motion shifted the burden to Plaintiff to justify the number under CCP §§ 2030.040(b) and 2033.040(b).

Here, Plaintiff has not carried her burden to justify SROGs and RFAs in the full volume propounded. Plaintiff served combined declarations under sections 2030.040 and 2033.040 dated May 4, 2026, addressing SROGs and RFAs propounded on Rocket Close, with additional RFAs served on Rocket Close on May 22, 2026 and separate declarations concerning discovery propounded on Rocket Companies. (Iqbal Decl. ¶¶ 6–7, 11, Ex. A.) The declarations were served approximately one month before Defendants filed the instant motion on June 4, 2026. (*Id.* at ¶ 11, Ex. A.)

Plaintiff's declarations invoke each of the statutory grounds enumerated in sections 2030.040(a) and 2033.040(a) and identify case-specific factual categories bearing on the July 2025 loan closing, the title commitment and underwriting record, internal records pre- and post-disbursement, post-closing discovery and transmission of the lien-priority defect, corporate governance and parent-subsidiary relationships, post-notice conduct, institutional ratification, insurance and indemnification considerations, and affirmative defenses. (*Id.*) The declarations further identify developments post-dating Set One, including the March 31, 2026 verified document production disclosing internal pre-disbursement title work, demurrers and Case Management Statements filed in April 2026, and the September 10, 2025 Notice of Claim authored by Oaktree Funding Corporation's General Counsel. (*Id.*)

Weighed against the volume actually propounded—98 aggregate SROGs and 202 aggregate RFAs across the two moving Defendants—the declarations set forth categories of issues but do not explain which specific requests correspond to which specific issue, or why the presumptive limit of 35 SROGs and 35 RFAs per Defendant is insufficient to develop those issues, as required by CCP §§ 2030.050 and 2033.050. Plaintiff's own prior filings further describe this action as document-driven and comparatively narrow in scope.

Notwithstanding the foregoing, sections 2030.090(b) and (c) and sections 2033.080(b) and (c) expressly authorize the Court to enter any order that justice requires, including orders that discovery be had only on specified terms and conditions, and to order that discovery be provided on just terms where the motion is granted in part. (CCP §§ 2030.090(b)–(c); 2033.080(b)–(c).)

Plaintiff's opposition and supporting declaration represent that Plaintiff has narrowed her operative discovery to priority lists of no more than 50 RFAs and 35 SROGs per moving Defendant, and reference an exhibit purporting to set forth those narrowed lists. (Little Decl. ¶ 8, Ex. F.) No such exhibit is attached to the declaration on file with the Court.

Defendants' Rocket Close and Rocket Companies, Inc. Motion for Protective Order GRANTED in PART and DENIED in PART.

Defendants' request for a blanket protective order limiting discovery at 35 SROGs and 35 RFAs per Defendant is DENIED.

Plaintiff to file and serve the referenced narrowed lists within 10 days of this order.

Plaintiff's discovery as to Defendants Rocket Close, LLC and Rocket Companies, Inc. shall proceed within no more than 50 RFAs and 35 SROGs per Defendant, consistent with Plaintiff's narrowed priority lists referenced in her opposition.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2508295	LITTLE VS ROCKET CLOSE, LLC	PLAINTIFF'S MOTION FOR RECONSIDERATION OF PRELIMINARY INJUNCTION PURSUANT TO CCP § 1008(B)

Tentative Ruling: No tentative ruling. A hearing shall be conducted.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2508945	ZADEII VS BIRDSALL	DEMURRER ON 1ST AMENDED COMPLAINT FOR OTHER COMPLAINT) OF GHOLAM ZADEII, M.D. BY GREGORY PHILLIP BIRDSALL, KANDICE KAY BIRDSALL

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.)

However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where the pleading is uncertain, ambiguous, or unintelligible. (C.C.P. § 430.10(f).) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading but is directed only at uncertainty existing in the allegations already made. (*People v. Taliaferro* (1957) 149 Cal.App.2d 822, 825.) Where a complaint is sufficient to state a cause of action and to apprise defendant of issues he or she is to meet, it is not properly subject to a special demurrer for uncertainty. (*Ibid.*)